

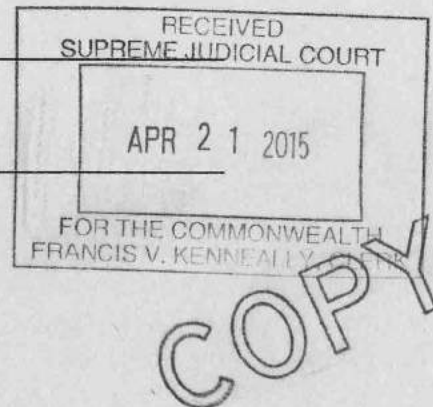
COMMONWEALTH OF MASSACHUSETTS
SUPREME JUDICIAL COURT

No. SJC-11830

COMMONWEALTH
Plaintiff/Appellee

v.

MELISSA LUCAS
Defendant/Appellant



On Appeal Pursuant to a Reservation
and Report of a Single Justice

**BRIEF OF NEW ENGLAND FIRST AMENDMENT COALITION, BOSTON
GLOBE MEDIA PARTNERS, LLC, MASSACHUSETTS NEWSPAPER
PUBLISHERS ASSOCIATION, HEARST TELEVISION, INC., NEW
ENGLAND NEWSPAPER AND PRESS ASSOCIATION, INC. AND NEW
ENGLAND SOCIETY OF NEWSPAPER EDITORS AS AMICI CURIAE
IN SUPPORT OF DEFENDANT/APPELLANT**

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STATEMENT OF AMICI CURIAE

The New England First Amendment Coalition ("NEFAC") is a 501(c)(3) nonprofit organization that defends, promotes, and expands public access to government and the work it does. The coalition is a broad-based organization of lawyers, journalists, historians, librarians, and academics, as well as private citizens and organizations whose core beliefs include the principles of the First Amendment. The coalition aspires to advance and protect the five freedoms of the First Amendment and the principle of the public's right to know in New England. In collaboration with other like-minded advocacy organizations, NEFAC also seeks to advance understanding of the First Amendment across the nation and freedom of speech and press issues around the world. NEFAC routinely files *amicus curiae* briefs on press freedom issues, including in *Commonwealth v. George W. Prescott Publ'g Co.*, 463 Mass. 258 (2012); *MaineToday Media, Inc. v. State*, 82 A.3d 104 (Me. 2013); and *Union Leader Corporation v. N.H. Retirement Sys.*, 34 A.3d 725 (N.H. 2011). NEFAC does not have a parent company, and no publicly held corporation owns 10% or more of its stock.

Boston Globe Media Partners, LLC ("BGMP") is the publisher of *The Boston Globe*, a daily newspaper based in Boston, Massachusetts founded in 1872 and also published online at BostonGlobe.com. BGMP also owns and operates the news websites boston.com, BetaBoston, Crux, and BDCwire. BGMP does not have a parent company, and no publicly held corporation owns 10% or more of its stock.

Hearst Television, Inc. comprises 31 television stations, including WCVB-TV in Boston, and two radio stations, in geographically diverse U.S. markets. Hearst Television, Inc. and its ultimate parent, the Hearst Corporation, are privately held and thus no publicly held corporation owns 10% or more of Hearst Television, Inc.'s stock.

The Massachusetts Newspaper Publishers Association ("MNPA") is a voluntary association of daily and weekly newspapers published through the Commonwealth of Massachusetts. It represents those newspapers in legal and legislative matters of common concern. In particular, the MNPA focuses on preserving freedom of speech and the public's right to know. The MNPA has filed briefs as *amicus curiae* in Massachusetts appellate courts on numerous occasions

over more than 25 years in matters affecting the interests of Massachusetts newspapers. MNPA does not have a parent company, and no publicly held corporation owns 10% or more of its stock.

New England Newspaper and Press Association, Inc. ("NENPA") is the regional association for newspapers in the six New England States (including Massachusetts). NENPA is a non-profit corporation, with a corporate office in Dedham, Massachusetts. Its purpose is to promote the common interests of newspapers published in New England. Consistent with its purposes, NENPA is committed to preserving and ensuring the open and free publication of news and events in an open society. NENPA does not have a parent company, and no publicly held corporation owns 10% or more of its stock.

The New England Society of Newspaper Editors ("NESNE") has, since 1955, served as the premier organization comprising of editors at newspapers, broadcast stations, and Internet sites throughout the six New England states. NESNE advocates on behalf of its more than 1,000 members to provide training through workshops and seminars, help them grow their audience, present awards to recognize excellence in

our industry, and lend assistance and with Open Meeting and First Amendment and public records law issues. NESNE does not have a parent company, and no publicly held corporation owns 10% or more of its stock.

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SUMMARY OF ARGUMENT

When State Representative Brian Mannal was running for reelection, the Jobs First Independent Expenditure Political Action Committee ("Jobs First") urged citizens to vote against him. Jobs First accused Mannal of "putting criminals and his own interest above our families" by wanting to "use our tax dollars to pay defense lawyers like himself to help convicted sex offenders." See *Jobs First Independent Expenditure PAC v. Coakley*, No. 14-cv-14338, 2014 WL 7180465 *1 (D. Mass. Dec. 17, 2014). Editorials and letters to the editor in the *Barnstable Patriot* and the *Cape Cod Times*, an article in the *North Andover Eagle Tribune*, and Rep. Mannal himself all publicly decried the fliers sent by Jobs First in this and other state elections as being misleading and inaccurate. See Section I.C, *infra*. The voters apparently sided with Mannal in this debate; he won his reelection.

But despite having the clear ability to address this alleged falsehood in the court of public opinion, Mannal went further, and attempted to hold Jobs First's treasurer, Melissa Lucas, criminally responsible for this speech. To do so, he relied upon a rarely used law, enacted before nearly all modern

First Amendment jurisprudence, that criminalizes "any false statement in relation to any candidate for nomination or election to public office, which is designed or tends to aid or to injure or defeat such candidate." G. L. c. 56, § 42 ("Section 42").

This Court has now called upon *amicus curiae* to help it answer a fundamental question about the nature of speech protections in the Commonwealth - *i.e.*, whether Section 42 is unconstitutional because it violates the speaker's right of free speech under the Federal and State constitutions.

The answer to that question is an emphatic "yes." The statute in issue does not and cannot pass muster under either Article 16, as amended by Article 78, of the Massachusetts Declaration of Rights ("Article 16"), or the First Amendment to the United States Constitution. The statute impermissibly restricts the free speech rights of speakers in the Commonwealth, much like similar statutes in Minnesota, Ohio, and Washington struck by courts in recent years. Regulating false speech in the realm of elections, where free speech rights have their highest import, impermissibly allows the government to become the arbiter of political and social discussion. Absent a

state interest of the highest order and narrow tailoring to achieve those ends, which the Commonwealth does not even attempt to provide here, such regulation must be struck.

Not only does Section 42 unconstitutionally regulate speech, it is also unconstitutionally vague. The unclear scope and knowledge requirements within Section 42 leave no apparent indication of what speech, in particular, would be proscribed by the statute. This vagueness threatens not just partisan PACs, but any person who publishes or causes to be published a statement concerning a candidate or ballot question.

As set forth herein, the Court should therefore strike the statute as unconstitutional.

ARGUMENT

I. Political Speech is Robustly Protected Under Article 16 and the First Amendment, and Courts That Have Recently Considered "False Campaign Speech" Statutes Have Found Them Unconstitutional.

By criminally sanctioning false campaign speech, Section 42 conflicts with Article 16's and the First Amendment's grants of strong protection to political speech. Courts have unanimously overturned false campaign speech statutes following the Supreme Court's

decision in *United States v. Alvarez*, 132 S. Ct. 2537 (2012), which found that the proper response to false speech is not criminalization, but rather speech that is true. The Commonwealth cannot possibly show why Section 42 should be treated any differently, or why having criminal courts serve as arbiters of the truth is the most narrowly tailored response to concerns that voters may be misled in the realm of political discussion.

A. Political speech is core to the protections of Article 16 and the First Amendment.

Section 42's prohibition against "any false statement in relation to any candidate for nomination or election to public office" unconstitutionally inhibits political discussion, and threatens the "full airing of views . . . in the marketplace of political ideas" that is integral to the democratic elections process. *Associated Industries of Mass. v. Attorney General*, 418 Mass. 279, 288 (1994).¹ "One of the chief

¹ This Court has held that the Massachusetts Declaration of Rights is generally coextensive with the United States Constitution, and, where the two depart, the Commonwealth provides more extensive protection of speech than the United States. See, e.g., *Mendoza v. Licensing Bd. of Fall River*,

reasons for freedom of the press is to insure freedom . . . of political discussion of men and measures, in order that the electorate at the polls may express the genuine and informed will of the people." *Bowe v. Secretary of the Commonwealth*, 320 Mass. 230, 252 (1946); accord *Buckley v. Valeo*, 424 U.S. 1, 14 (1976). The robust protection of the people's right to discuss political affairs is in part a reflection of the tradition of town meetings in Massachusetts, where, "[i]n this open democracy, every opinion had utterance; every objection, every fact, every acre of land, every bushel of rye, its entire weight." Ralph Waldo Emerson, *Historical Discourse at Concord* (Sept. 12, 1835), in *The Works of Ralph Waldo Emerson* 27 (1904); see also *John Doe No. 1 v. Reed*, 561 U.S. 186, 223 (2010) (Scalia, J., concurring in judgment) (noting the New England town meeting as an influence in modern open governance in the United States).

Given the particular importance of free speech during elections, the Supreme Court has emphasized that the First Amendment "has its fullest and most

444 Mass. 188, 190-91 (2005); accord *Flaherty v. Knapik*, 999 F. Supp. 2d 323, 332-33 (D. Mass. 2014).

urgent application precisely to the conduct of campaigns for political office.'" *McIntyre v. Ohio Elections Comm'n*, 514 U.S. 334, 347 (1995) (quoting *Buckley*, 424 U.S. at 15). Because free speech is critical to a successful democracy, "political speech must prevail against laws that would suppress it, whether by design or inadvertence." *Citizens United v. FEC*, 558 U.S. 310, 340 (2010). "Suppression of the right of the press to praise or criticize governmental agents and to clamor and contend for or against change . . . muzzles one of the very agencies the Framers of our Constitution thoughtfully and deliberately selected to improve our society and keep it free." *Mills v. Alabama*, 384 U.S. 214, 219 (1966). Section 42 attempts to criminalize a wide range of speech by candidates, citizens, and the press, precisely in the area of speech where such restriction is least tolerated.

B. State and federal courts have struck analogous statutes as unconstitutional.

Acknowledging that such restrictions on political speech are inappropriate, state and federal courts have recently struck similar – although, notably, even narrower – statutes as violative of the First

Amendment. These decisions have been unanimous since the Supreme Court's decision in *Alvarez*, which voided a statute that prohibited lying about receiving certain military honors. In *Alvarez*, the Court expressly rejected the notion that "false statements, as a general rule, are beyond constitutional protection," 132 S. Ct. at 2544-45, and that an "actual malice" mens rea requirement² could be taken out of the defamation context and applied to a "far greater realm of discourse and expression." *Id.* at 2545.

Last year the United States Court of Appeals for the Eighth Circuit struck Minnesota's ban on false campaign speech. *281 Care Comm. v. Arneson* (*281 Care Comm. II*), 766 F.3d 774, 787 (8th Cir. 2014). The Minnesota statute, reproduced fully in the Addendum below, made it a crime to prepare, disseminate, or broadcast political advertising or campaign material

² "Actual malice" in this brief references the term of art originating in defamation law, which limits the tort's applicability or certain forms of damages unless the plaintiff can show that the speaker made a false and defamatory statement "with knowledge that it was false or with reckless disregard of whether it was false or not." *Hipsaver, Inc. v. Kiel*, 464 Mass. 517, 530 (2013) (quoting *New York Times Co. v. Sullivan*, 376 U.S. 254, 280 (1964)).

that is false, when communicated with actual malice.
Id. at 778.

The court found this to be a content-based restriction on speech and applied strict scrutiny. *Id.* at 784.³ Although the Eighth Circuit stipulated that the government had a compelling interest in preventing fraud in elections, the court found the statute was not an appropriate means of achieving those objectives, and that, instead, false campaign speech statutes can harm those interests. *Id.* at 787. The court noted that the government failed to show why counterspeech would be so inadequate as to justify government intervention into the regulation of the truth of political debate. *Id.* at 793. The court also expressed grave concerns about the fact that any person can initiate an action under the statute, exposing it to tremendous risk of abuse for partisan gain, where "[c]omplaints can be filed at a tactically calculated time so as to divert the attention of an

³ The Eighth Circuit rejected the argument that intermediate scrutiny should apply because only four of the six justices that struck the statute in *Alvarez* applied strict scrutiny, noting that *Alvarez* did not concern political speech, which is afforded higher protection than other forms of speech. 281 *Care Comm. II*, 766 F.3d at 783-84.

entire campaign . . . thus inflicting political damage." *Id.* at 790.

The court expressly considered whether the actual malice standard imposed in the statute would address the concerns but concluded that it did not. The court noted that

"[t]he risk of chilling otherwise protected speech is not eliminated or lessened by the mens rea requirement because . . . a speaker might still be concerned that someone will file a complaint with [the government], . . . for a careless false statement or possibly a truthful statement someone deems false, no matter the speaker's veracity. . . . There is nothing in place to realistically stop the potential for abuse of [the statute's] mechanisms."

Id. at 794. As an earlier decision in the same case noted, the regulation of speech under campaign laws is not equivalent to defamation because "defamation-law principles are justified not only by the falsity of the speech, but also by the important private interests implicated by defamatory speech." *281 Care Comm. v. Arenson* (*281 Care Comm. I*), 638 F.3d 621, 634 (8th Cir. 2011). Applying the same standard to election laws would be akin to giving the government or a ballot initiative a defamation-like right of action, which the United States Supreme Court has

rejected. *Id.* (citing *Sullivan*, 376 U.S. at 291; *McIntyre*, 514 U.S. at 352 n.16).

The Southern District of Ohio reached the same result in *Susan B. Anthony List v. Ohio Elections Commission*, 45 F. Supp. 3d 765 (S.D. Ohio 2014).⁴ The district court followed the analysis of the Eighth Circuit's case, and struck Ohio's false campaign speech statute, reproduced in the Addendum. *Id.* at 779.⁵ The court applied strict scrutiny to the statute and again emphasized the important role of counterspeech as the more appropriate forum for addressing these harms. As the court noted:

"We can all agree that lies are bad. The problem is, at least with respect to some political speech, that there is no clear way to determine whether a political statement is a lie or the truth, and we certainly do not want the Government . . . deciding what is political truth anyway, for fear that the Government might persecute those who criticize the Government or its leaders."

⁴ The case previously reached the United States Supreme Court on a standing issue, see *Susan B. Anthony List v. Driehaus*, 134 S. Ct. 2334 (2014).

⁵ In so doing, the court departed from a decision in its own circuit that had previously upheld the statute, see *Pestarak v. Ohio Elections Comm'n*, 926 F.2d 573 (6th Cir. 1991), noting the significance of the intervening decision in *Alvarez*. *Susan B. Anthony List*, 45 F. Supp. 3d at 774.

Id. at 778-79. Like the Eighth Circuit, the Southern District of Ohio refused to let the statute's requirement of actual malice save it, noting that a similar construction did not save the statute in *Alvarez*. *Id.* at 777-78. Indeed, the Ohio statute risked a "more powerful" chilling effect, as investigating the subjective knowledge of the speaker would require the speaker to divulge "political communications and affiliations, such as strategic discussions with political parties, other candidates, or campaign allies." *Id.*

Even before *Alvarez*, the Supreme Court of Washington had struck that state's false campaign advertising statutes for similar reasons, noting that "[t]he notion that the government, rather than the people, may be the final arbiter of truth in political debate is fundamentally at odds with the First Amendment." *Rickert v. Pub. Disclosure Comm'n*, 168 P.3d 826, 846 (Wash. 2007); see also *State ex rel. Pub. Disclosure Comm'n v. 119 Vote No! Comm.*, 957 P.2d 691, 693 (Wash. 1998) (striking an earlier version of the same statute for similar reason); 281 *Care Comm. I*, 638 F.3d at 636 (instructing the district court to apply strict scrutiny in a pre-

Alvarez decision); cf. *Mowles v. Comm'n on Governmental Ethics and Election Practices*, 958 A.2d 897, 904-05 (Me. 2008) (striking down a false political endorsement statute, noting that "the appropriate cure for misleading political speech is more speech" and "in the guise of the most benevolent purposes, an incumbent government could restrict the free flow of information and debate in the public marketplace of ideas").

C. Section 42 proscribes the same type of speech as these cases, in even broader terms, and is therefore similarly unconstitutional.

As the cases discussed above illuminate, attempting to prevent voter misinformation by proscribing false campaign speech does not serve the ends it seeks. It instead puts the government in the inappropriate position of adjudicating political and social truths, empowers partisan interests to abuse criminal law for political ends, and, unlike counterspeech, fails to even address errors in speech until long after elections end. See William P. Marshall, *False Campaign Speech and the First Amendment*, 153 U. Penn. L. Rev. 285, 297-300 (2004). Section 42 suffers the same shortcomings, and in many

respects is far worse, as it proscribes the same speech in broader terms.

Section 42 indisputably regulates the content of speech in the subject matter areas of elections and ballot questions. See *281 Care Comm. II*, 766 F.3d at 784; *Susan B. Anthony List*, 45 F. Supp. 3d at 755.

"[T]he Constitution 'demands that content-based restrictions on speech be presumed invalid . . . and that the Government bear the burden of showing their constitutionality.'" *Alvarez*, 132 S. Ct. at 2544 (quoting *Ashcroft v. ACLU*, 542 U.S. 656, 660 (2004)). Here, the Commonwealth does not even attempt to bear that burden; they declined to file a brief at all.

As recent cases have made clear, false campaign speech is not one of the traditional, unprotected categories of speech, such as defamation or fraud, where, due to countervailing private interests, free speech jurisprudence tolerates some limited encroachment. See *Susan B. Anthony List*, 45 F. Supp. 3d at 755; *Alvarez*, 132 S. Ct. at 2545. Furthermore, the notion in Section 42 that speech critical of candidates should be accorded less protection opposes our political history and tradition. Making statements that criticize candidates for office is not only

protected speech, it is the essence of campaigning and integral to our political process. See *New York Times Co. v. Sullivan*, 376 U.S. 254, 270 (1964) (noting that protected public debate "may well include vehement, caustic, and sometimes unpleasantly sharp attacks on government and public officials").

For this reason courts struck the statutes in Minnesota, Ohio, and Washington, even though each was limited to false statements made with actual malice. In contrast, Section 42 does not even appear to have an actual malice requirement. While the precise mens rea of the statute is subject to debate (which is itself cause for concern; see the discussion in Section II, *infra*), it may or may not include the requirement that the defendant knows the speech to be false. If it does not, it would directly contradict this Court's prior determination in defamation law that false speech about elected officials may only be penalized if the plaintiff can show actual malice. See *Lane v. MPG Newspapers*, 438 Mass. 476, 483 (2003).

Free speech jurisprudence recognizes that with this openness comes the risk of abuse, but "the remedy to be applied is more speech, not enforced silence." *Whitney v. California*, 274 U.S. 357, 377 (1927)

(Brandeis, J., concurring); see also Alvarez, 132 S. Ct. at 2550 ("The response to the unreasoned is the rational; to the uninformed, the enlightened; to the straightout lie, the simple truth."). Readers and listeners already know "in the context of a heated political campaign" to be "skeptical of politically self-serving statements." *Lyons v. Globe Newspaper Co.*, 415 Mass. 258, 264 (1993). There is no evidence that this statute would actually help inform voters. If anything, citizens would be more suspicious of a government declaration on a statement's truth. Such skepticism is, in part, the basis of free speech doctrine. 281 *Care Comm. I*, 638 F.3d at 636.

The facts here demonstrate the merit of this position. After the mailers from Jobs First went out, *The Barnstable Patriot* published a letter by a local official supporting Mannal's re-election, noting that she was "dismayed by the mailers [she] received about this election." Jen Cullum, *Your Head or Your Heart*, *Barnstable Patriot* (Oct. 10, 2014), http://www.barnstablepatriot.com/home2/index.php?option=com_content&task=view&id=37552&Itemid=112. The author countered the absurd notion that Mannal seeks to put criminals ahead of his constituents by

detailing Mannal's record of "car[ing] about our community and work[ing] to make it a safer, better place." *Id.* A letter to the editor in the *Cape Cod Times* echoes this sentiment. Connie Nicholson, PAC *Targeting Mannal Uses Vicious, Relentless Tactics*, *Cape Cod Times* (Oct. 24, 2014), <http://www.capecodtimes.com/article%2F20141024%2FOPINION02%2F410230316%2F-1%2Frs17>. In response to a different Jobs First mailer in an election in another district, the *Eagle Tribune* of North Andover ran an article detailing criticism of the mailer made by the candidate, and including responses from her opponent. Douglas Moser, *DiZoglio Blasts Smedile, PAC for Distorting Voting Record*, *Eagle Tribune* (Oct. 11, 2014), http://www.eagletribune.com/news/dizoglio-blasts-smedile-pac-for-distorting-voting-record/article_4246efae-d49c-5ac8-b70a-8b7a73272f73.html.

Representative Mannal himself actively participated in this discussion, frequently posting his opposition to these and other attacks and sharing numerous news articles that included similar criticism. See generally Brian Mannal, Twitter, <https://twitter.com/brianmannal> (last visited Apr. 19, 2015); Brian Mannal, *Rep. Mannal Debunks Mass Fiscal*

Alliance's False and Misleading Mass Mailer (Aug. 12, 2014), <http://www.electmannal.com/#!Rep-Mannal-Debunks-Mass-Fiscal-Alliances-False-and-Misleading-Mass-Mailer/clf7u/D82C8202-8A46-4FD5-87CD-25F7E8425E08> (extensively debunking a mailer by another organization). Given the result of the election, the voters appear to have agreed with him. They did not need the Barnstable District Court to help them with that conclusion.

Far from being merely ineffective, Section 42 also presents a grave risk of waste and abuse. Shortly after filing his complaint, Rep. Mannal held a press conference to drum up media interest in the story by mentioning the legal action. C. Ryan Barber, *Cape Cod Legislator Fights Back Against PAC Charges*, Cape Cod Times (Oct. 22, 2014), <http://www.capecodtimes.com/article/%2F20141022%2FNEWS%2F410210340>. Jobs First has indicated that these criminal threats chilled its activity in the final three weeks of the campaign. See App't Brief at 6 (noting that Jobs First declined to run a political advertisement after the complaint, due to the threat of criminal action). There is nothing that prohibits others from following this tactic by filing criminal complaints under Section 42 in order

to frustrate opponents and burden the resources of the courts for private, political gain.

"Truth needs neither handcuffs nor a badge for its vindication." *Alvarez*, 132 S. Ct. at 2551.

Counterspeech worked in the cases cited above, it worked in the case at bar, and the Commonwealth does not even attempt to show why it would not work in other cases. The Commonwealth would be equally hard pressed to demonstrate a single case where the presence of this law would actually result in a more informed electorate. Instead, Section 42 appears to be little more than a nefarious political tool. This Court should follow the courts in Minnesota, Ohio, and Washington, and strike Section 42.

**II. Section 42 is Unconstitutionally Vague,
Potentially Extending to a Staggering Array of
Speech Related to Politics**

As discussed in the cases above, false campaign speech statutes are unconstitutional even when they narrowly circumscribe the speakers and speech at issue and limit their application to knowingly false statements. Section 42, however, does none of these things, leaving it not only an unconstitutional content-based restriction on speech, but also an unconstitutionally vague one.

A statute is facially unconstitutional if it is so vague that persons "of common intelligence must necessarily guess at its meaning and differ as to its application." *Commonwealth v. Gallant*, 373 Mass. 577, 580 (1977) (quoting *Connally v. Gen. Constr. Co.*, 269 U.S. 385, 391 (1926)). Here, a person of common intelligence has little hope of discerning the conduct that Section 42 proscribes as the statute fails utterly to describe the conduct that it prohibits with specificity,⁶ and has never been interpreted by any reported decision in its decades of existence.

To begin with, the statute fails to further define what types of statements are "false statements" subject to punishment. The statute may or may not apply to true but misleading statements, or false but satirical or hyperbolic statements, or the types of false statements that are not actionable in defamation cases. See *Salvo v. Ottaway Newspapers, Inc.*, 57 Mass. App. Ct. 255, 260-63 (2003) (extensively examining when false statements are actionable in defamation);

⁶ Or in the alternative, if the statute is to be read as broadly as the terms may mean, it is quite clearly unconstitutionally overbroad, as it would sweep a staggering array of protected speech. See Section III, *infra*.

Lyons, 415 Mass. at 264 n.7 (opinions based on disclosed nondefamatory factual statements are not actionable in defamation, even if the factual statement is false). There is no clear precedent as to what these terms mean, thus subjecting the law to the whims of each judge in each court in the Commonwealth. See *Ashton v. Kentucky*, 384 U.S. 195, 198 (1966) (striking common law criminal defamation in Kentucky as unconstitutional, as no case "has redefined the crime in understandable terms, and because the law must be made on a case by case basis").

Further, it is unclear what it means for a person to "make or publish" a statement under Section 42. To "make" a statement could apply to any speech anywhere, whether written or spoken, online or in print, in fiction or nonfiction, or shared publicly, privately, or with no one at all. "Publication" is similarly unclear; it may mean "publication" in the defamation sense, such that the statement is actionable if it is shared with even one other person, or it may refer to a broader form of dissemination. See Restatement (Second) Torts § 652D cmt. a (noting a difference between "publication" in the defamation context and

"publicity" in the tort of public disclosure of private facts).

No clearer guidance can be gleaned from the statute's mens rea requirement. The statute punishes those who "knowingly" violate it, but it is unclear whether this means that the defendant must know that they disseminated a statement, know that it would aid or injure a candidate, know it was false, or some combination of the three. One of the few times this Court has discussed Section 42, it described the statute as forbidding "false statements knowingly designed to injure a candidate," suggesting the second of the three constructions. *Opinion of the Justices*, 362 Mass. 891, 894 (1972). And even if this court were to read in a scienter requirement to every element of the offense, see *Commonwealth v. Jones*, No. SJC-11717, slip op. at 10-11 (Mass. Apr. 9, 2015), the statute would still suffer the same infirmities as the statutes from other states that contained an "actual malice" limitation. See Section I.B, *supra*.

The danger of a vague statute in the speech context is especially acute and susceptible to abuse. Section 42 in effect delegates "basic policy matters to policemen, judges and juries for resolution on an

ad hoc and subjective basis, with the attendant dangers of arbitrary and discriminatory application." See *Grayned v. Rockford*, 408 U.S. 104, 109 (1972). It is especially critical to safeguard First Amendment protections in the election context because "[i]t is here that the state has a special incentive to repress opposition and often wields a more effective power of suppression.'" *First Nat'l Bank of Boston v. Bellotti*, 435 U.S. 765, 777 n.11 (1978) (quoting Thomas Emerson, *Toward a General Theory of the First Amendment* 9 (1966)). For both the content that it regulates and the terms under which it regulates content, Section 42 does not withstand constitutional scrutiny.

III. Section 42 Presents Grave Concerns to the Freedom of the Press, as It Makes No Distinction Among Publishers, Distributors, or the Original Speaker, and Covers Virtually Any Statement That Could Be Described as False

In order to allow for and protect the free flow of information about issues of public concern, journalists and speakers at all levels are afforded the constitutionally guaranteed right to freedom of the press under Article 16 and the First Amendment. See *Bowe*, 320 Mass. at 252. "The Constitution specifically selected the press, which includes not only newspapers, books, and magazines, but also humble

leaflets and circulars . . . to play an important role in the discussion of public affairs." *Mills*, 384 U.S. at 219. For decades, Section 42 has largely laid dormant in the shadows of this freedom.⁷ Its awakening in recent years threatens to radically alter speech regulation, exposing countless speakers to a new form of liability, in the area where free debate is most cherished.

As noted above, Section 42 risks inhibiting a wide array of speech, even statements made where the information "is believed to be true and even though it is in fact true, because of doubt whether it can be proved in court or fear of the expense of having to do so." *Sullivan*, 376 U.S. at 279. Allowing Section 42 to take on this new life and punish the speaker or carrier of virtually all false election-related statements would lead to absurd results.

⁷ Based on the review conducted for preparation of this brief, *amici* found only one mention of its actual application, in an unpublished decision. See *Reeves v. Town of Hingham*, 86 Mass. App. Ct. 1121, 1121 (2014). This lack of cited cases is by no means a reason for keeping the statute on the books. Courts must not uphold unconstitutional statutes "merely because the Government promises to use [them] responsibly." *United States v. Stevens*, 559 U.S. 460, 462 (2010).

By its terms, the statute extends liability as far down the chain of communication as one can be while still causing a statement "to be made or published." G. L. c. 56, § 42. This potentially ascribes liability to publishers of third-party information, even when the public well understands that they are not the originators of that speech. Newspapers routinely carry letters to the editor, advertisements, and other forms of third-party media. Under one reading of Section 42, a newspaper could be responsible for any and all falsehoods in those pieces. The very same logic could extend to others in the chain of distribution of a publication: the printer, the delivery truck, and the convenience store all contribute to the statements "be[ing] made or published," and the statute makes no mention of limiting liability.

The statute also makes no room for rhetorical hyperbole, a very common form of campaign speech. Rep. Mannal engaged in this form of speech during the election at issue here, claiming at one point that his opponent, Adam Chaprales, was "bought by one of those PACs" sending out mailers in the election. C. Ryan Barber, Twitter (Oct. 30, 2014),

<https://twitter.com/cryanbarber/status/527979133226479>

618. A reader would of course understand this to be a figure of speech; no one believes that Mannal meant his opponent had literally sold his body, only that Mannal suggested that Chaprales compromised his own morals for the sake of the PAC. Nevertheless, Section 42 does not distinguish between false speech and hyperbole, and thus Mr. Chaprales could be seen as having grounds to bring a criminal complaint against Rep. Mannal.

Nor does Section 42 consider statements that are known not to be true, but are nevertheless newsworthy for the fact that they were said. During the last presidential election, former Governor Mitt Romney alleged that federal regulations under President Obama had quadrupled. See J.B. Wogan, *Romney Says Federal Regulations Quadrupled Under Obama*, PolitiFact.com (Oct. 18, 2012), <http://www.politifact.com/truth-o-meter/statements/2012/oct/18/mitt-romney/federal-regulations-quadrupled-under-obama/>. This is not true, and newspapers at the time published this statement to explain why it was false. Under the terms of Section 42, however, doing so would constitute knowingly

publishing a false statement, thus potentially exposing the newspaper to criminal liability.

The same logic extends to coverage of conflicting reports. An article in *Wicked Local Cape Cod* about the election at issue here noted a dispute between Mannal and Chaprales over a statement Chaprales made that Mannal believed to be deceptive. The article begins "State Rep. Brian Mannal . . . has accused Adam Chaprales . . . of 'lying to voters' and running a 'campaign of deception,' and has called on Chaprales to apologize. Chaprales says he stands by his remarks, and will not apologize." Conor Powers-Smith, *Candidates Clash in Barnstable/Yarmouth State Rep Race*, *Wicked Local Cape Cod* (Aug. 29, 2014), <http://capecod.wickedlocal.com/article/20140829/News/140826699>. If the Commonwealth brought a criminal action to adjudicate whether Chaprales's statement was, in fact, "deceptive," either Mannal or Chaprales could be found guilty. And whichever way the government would decide, the journalist at *Wicked Local Cape Cod* would have caused the statement to be published. In defamation law, doctrines like neutral reportage and the fair report privilege attempt to prevent these absurd results, see Robert D. Sack, Sack

on Defamation § 7.3 (4th ed. 2010), but Section 42 contains no such consideration.

Satire and irony are similarly at risk, despite their constitutionally protected status. See *Hustler Magazine, Inc. v. Falwell*, 485 U.S. 46, 51 (1988). For example, a recent article in the satirical publication *The Onion* pokes fun at Republican candidate for President Sen. Rand Paul by suggesting that his father, famed libertarian Ron Paul, "would hold off on endorsing any presidential candidate until a true libertarian entered the race." See *Ron Paul Withholding Endorsement Until True Libertarian Enters Race*, *The Onion* (Apr. 7, 2015), <http://www.theonion.com/articles/ron-paul-withholding-presidential-endorsement-unti,38392/>. Andy Borowitz, author of *The New Yorker's* satirical column "The Borowitz Report," poked similar fun at Democratic presidential candidate Sec. Hillary Clinton, with an article humorously suggesting Clinton's campaign launch video consisted of kittens "playing in a sock drawer, tangled up in yarn, and chasing a duckling." Andy Borowitz, *New Hillary Clinton Ad Features Just Kittens*, *The New Yorker* (April 13, 2015), <http://www.newyorker.com/humor/borowitz-report/new->

hillary-clinton-ad-features-just-kittens. Both statements are, of course, false, and Borowitz and *The Onion* know them to be false. By the terms of Section 42, however, both could potentially be held criminally liable.

Section 42 also does not specify whether such falsehoods need to be substantial or material in order to be actionable. This leaves unclear whether small mistakes that do not change the essence of an article would be subject to criminal punishment on the part of speakers, publishers, and distributors. This could include typographical errors or harmless errors of fact on the part of speakers. The statement "Candidate Smith robbed a bank on Tuesday" could be the basis for a Section 42 action if she did rob a bank, but it happened on a Monday.

Finally, Section 42's six year statute of limitations, see G. L. c. 277, § 63, could lead to the punishment of statements that were believed to be true at the time, but later turned out to be false. A person could bring a criminal complaint tomorrow for a misreported comment made concerning the Martha Coakley and Scott Brown U.S. Senate race five years ago. Publications will not know how political statements,

discussions, or quotations will be perceived years down the line or how the reported facts may change over time, and thus they may feel safer not publishing these statements at all.

This Court is addressing the merits of this law for the first time. Upholding this law would be a tacit sanction of its appropriateness in these types of actions. What have only been scattered cases over the past two years could lead to a vastly increased number of claims against speakers, publishers, and distributors, which would clog the courts with meritless criminal actions. The Court should avoid this undesirable outcome by taking this opportunity to declare Section 42 unconstitutional on its face.

CONCLUSION

Section 42 fails to satisfy scrutiny under both the Massachusetts and Federal Constitutions. For the reasons set forth herein, to avoid significant impacts on free speech rights of citizens in the Commonwealth, *amici curiae* respectfully submits that the statute should be struck as unconstitutional.

Respectfully submitted,



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DATED: April 21, 2015

⁸ *Amici* thank Harvard Law School Cyberlaw Clinic students Catherine Essig, Naomi Gilens, and D. Patrick Knoth for their valuable contributions to this brief.

CERTIFICATE OF COMPLIANCE

I, Andrew Sellars, hereby certify pursuant to Mass. R. App. P. 16(k) that the instant brief complies with the rules of court pertaining to the filing of briefs, including, but not limited to, Mass. R. App. P. 16(a)(6), (e), (f), and (h), 18, and 20.

Dated: April 21, 2015

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ADDENDUM

Constitution of the United States Amendment I

Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the Government for a redress of grievances.

Constitution of the Commonwealth of Massachusetts Article 16

The liberty of the press is essential to the security of freedom in a state: it ought not, therefore, to be restrained in this commonwealth. The right of free speech shall not be abridged.

Mass. Gen. Laws Ann. ch. 56, § 42

No person shall make or publish, or cause to be made or published, any false statement in relation to any candidate for nomination or election to public office, which is designed or tends to aid or to injure or defeat such candidate.

No person shall publish or cause to be published in any letter, circular, advertisement, poster or in any other writing any false statement in relation to any question submitted to the voters, which statement is designed to affect the vote on said question.

Whoever knowingly violates any provision of this section shall be punished by a fine of not more than one thousand dollars or by imprisonment for not more than six months.

Minn. Stat. Ann. § 211B.06 (deemed unconstitutional in 281 Care Comm. v. Arneson (281 Care Comm. II), 766 F.3d 774 (8th Cir. 2014))

Subdivision 1. Gross misdemeanor. (a) A person is guilty of a gross misdemeanor who intentionally participates in the preparation, dissemination, or

broadcast of paid political advertising or campaign material with respect to the personal or political character or acts of a candidate, or with respect to the effect of a ballot question, that is designed or tends to elect, injure, promote, or defeat a candidate for nomination or election to a public office or to promote or defeat a ballot question, that is false, and that the person knows is false or communicates to others with reckless disregard of whether it is false.

(b) A person is guilty of a misdemeanor who intentionally participates in the drafting of a letter to the editor with respect to the personal or political character or acts of a candidate, or with respect to the effect of a ballot question, that is designed or tends to elect, injure, promote, or defeat any candidate for nomination or election to a public office or to promote or defeat a ballot question, that is false, and that the person knows is false or communicates to others with reckless disregard of whether it is false.

Subd. 2. Exception. Subdivision 1 does not apply to any person or organization whose sole act is, in the normal course of their business, the printing, manufacturing, or dissemination of the false information.

Ohio Rev. Code Ann. § 3517.21 (deemed unconstitutional in *Susan B. Anthony List v. Ohio Elections Commission*, 45 F. Supp. 3d 765 (S.D. Ohio 2014))

(A) No person, during the course of any campaign for nomination or election to public office or office of a political party, shall knowingly and with intent to affect the outcome of such campaign do any of the following:

(1) Serve, or place another person to serve, as an agent or employee in the election campaign organization of a candidate for the purpose of acting to impede the conduct of the candidate's campaign for nomination or election or of reporting information to the employee's employer or the agent's principal without the knowledge of the candidate or the candidate's organization;

(2) Promise, offer, or give any valuable thing or valuable benefit to any person who is employed by or is an agent of a candidate or a candidate's election campaign organization for the purpose of influencing the employee or agent with respect to the improper discharge of the employee's or agent's campaign duties or to obtain information about the candidate or the candidate's campaign organization.

(B) No person, during the course of any campaign for nomination or election to public office or office of a political party, by means of campaign materials, including sample ballots, an advertisement on radio or television or in a newspaper or periodical, a public speech, press release, or otherwise, shall knowingly and with intent to affect the outcome of such campaign do any of the following:

(1) Use the title of an office not currently held by a candidate in a manner that implies that the candidate does currently hold that office or use the term "re-elect" when the candidate has never been elected at a primary, general, or special election to the office for which he or she is a candidate;

(2) Make a false statement concerning the formal schooling or training completed or attempted by a candidate; a degree, diploma, certificate, scholarship, grant, award, prize, or honor received, earned, or held by a candidate; or the period of time during which a candidate attended any school, college, community technical school, or institution;

(3) Make a false statement concerning the professional, occupational, or vocational licenses held by a candidate, or concerning any position the candidate held for which the candidate received a salary or wages;

(4) Make a false statement that a candidate or public official has been indicted or convicted of a theft offense, extortion, or other crime involving financial corruption or moral turpitude;

(5) Make a statement that a candidate has been indicted for any crime or has been the subject of a finding by the Ohio elections commission without

disclosing the outcome of any legal proceedings resulting from the indictment or finding;

(6) Make a false statement that a candidate or official has a record of treatment or confinement for mental disorder;

(7) Make a false statement that a candidate or official has been subjected to military discipline for criminal misconduct or dishonorably discharged from the armed services;

(8) Falsely identify the source of a statement, issue statements under the name of another person without authorization, or falsely state the endorsement of or opposition to a candidate by a person or publication;

(9) Make a false statement concerning the voting record of a candidate or public official;

(10) Post, publish, circulate, distribute, or otherwise disseminate a false statement concerning a candidate, either knowing the same to be false or with reckless disregard of whether it was false or not, if the statement is designed to promote the election, nomination, or defeat of the candidate.

As used in this section, "voting record" means the recorded "yes" or "no" vote on a bill, ordinance, resolution, motion, amendment, or confirmation.

(C) Before a prosecution may commence under this section, a complaint shall be filed with the Ohio elections commission under section 3517.153 of the Revised Code. After the complaint is filed, the commission shall proceed in accordance with sections 3517.154 to 3517.157 of the Revised Code.

Wash. Rev. Code § 42.17.530 (2006) (deemed unconstitutional in *Rickert v. Public Disclosure Comm'n*, 168 P.3d 826 (Wash. 2007))

(1) It is a violation of this chapter for a person to sponsor with actual malice:

(a) Political advertising that contains a false statement of material fact about a candidate for public office. However, this subsection (1)(a) does

not apply to statements made by a candidate or the candidate's agent about the candidate himself or herself;

(b) Political advertising or an electioneering communication that falsely represents that a candidate is the incumbent for the office sought when in fact the candidate is not the incumbent;

(c) Political advertising or an electioneering communication that makes either directly or indirectly, a false claim stating or implying the support or endorsement of any person or organization when in fact the candidate does not have such support or endorsement.

(2) Any violation of this section shall be proven by clear and convincing evidence.

CORPORATE DISCLOSURE STATEMENT

Pursuant to Supreme Judicial Court Rule 1:21, I, Andrew Sellars, hereby certify that the New England First Amendment Coalition, Boston Globe Media Partners, LLC, Massachusetts Newspaper Publishers Association, New England Newspaper and Press Association, Inc., and New England Society of Newspaper Editors each do not have a parent company, and no publicly traded corporation owns 10% or more of their stock. Hearst Television, Inc.'s ultimate parent is the Hearst Corporation, which is privately held, and thus no publicly held corporation owns 10% or more of Hearst Television, Inc.'s stock.

Dated: April 21, 2015

A handwritten signature, likely of Andrew Sellars, is written over a horizontal line. The signature is stylized and cursive.

CERTIFICATE OF SERVICE

I, Andrew Sellars, hereby certify that on April 21, 2015, I caused two true and correct copies of the above document to be served on counsel of record for each other party by mailing the document by first-class mail, postage pre-paid, to the following:

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